

Court No. - 39

Case :- WRIT - C No. - 26687 of 2014

Petitioner :- Mohd. Iqbal Ansari

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Iqbal Ahmad

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

We have heard Sri Iqbal Ahmad, learned counsel for the petitioner, learned Standing Counsel for the respondent no. 1 and Dr. S.K. Yadav, learned counsel for the respondent nos. 2 and 3.

Dr. S.K. Yadav, learned counsel for the respondent nos. 2 and 3 at the very outset has pointed out that for the purpose of new electricity connection, the provisions of Clause 4.3 of the Electricity Supply Code, 2005 are available and in case the petitioner has applied in accordance thereof, there can be no reason why the respondent nos. 2 and 3 would not consider the same in accordance with law.

In view of the aforesaid submission, we dispose of this writ petition by providing that in case the petitioner complies with the provisions of Clause 4.3 of the Electricity Supply Code, 2005, the concerned respondent should take a decision in accordance with law expeditiously keeping in mind that electricity is an essential service and these are summer months.

No order is passed as to costs.

Order Date :- 13.5.2014

Rmk.